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Memorandum

FOR THE SECRETARY
FEDERAL MARITIME COMM

TO : Bryant L. VanBrakle, Secretary DATE: January 30, 2004
FROM : Rebecca F. Dye, Commissioner 

SUBJECT : Docket Number 03-15, Notice of Proposed Rulemaking regarding Ocean Common Carrier and Marine Operator Agreements Subject to the Shipping Act of 1984

On January 29, 2004, I met with Mr. Elliott J. Halperin with the law firm Manelli, Denison & Selter, at his request to receive his views on the Federal Maritime Commission's proposed rulemaking regarding ocean common carrier and marine operator agreements subject to the Shipping Act of 1984. Mr. Halperin represents Trans-Net Inc., a non-vessel-operating common carrier (NVOCC). Ed Lee, my *counsel*, was also present at the meeting.

Mr. Halperin is particularly interested in the part of the proposed rule which would change the definitions of a transshipment agreement and a nonexclusive transshipment agreement.

Trans-Net strongly supports the Commission's proposed regulation as it relates to transshipment agreements. Mr. Halperin stated his belief that this change in the Commission's regulations would not be a burden on vessel-operating common carriers. Mr. Halperin also reported that his client will submit written comments relating to this rulemaking before the end of the comment period.